

24TRCV03179 24TRCV03179

County: los-angeles

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Case Number: 24TRCV03179 Hearing Date: July 29, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

ANDERS OLAV GARLID

;

Plaintiff,

vs.

BEVERLY HILLS TRANSIT

COOPERATIVE INC.

, et al.;

Defendants.

Case

No.:

24TRCV03179

Hearing

Date:

July
29, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF ANDERS OLAV GARLID'S MOTION TO
COMPEL DEFENDANT HAMLET KARABEKYAN TO PROVIDE FURTHER RESPONSES TO SPECIAL
INTERROGATORIES (SET ONE)

(2)

PLAINTIFF ANDERS OLAV GARLID'S MOTION TO
COMPEL DEFENDANT HAMLET KARABEKYAN TO PROVIDE FURTHER RESPONSES TO REQUEST
FOR PRODUCTION (SET ONE)

(3)

PLAINTIFF ANDERS OLAV GARLID'S REQUESTS FOR
MONETARY SANCTIONS

MOVING PARTY: Plaintiff, Anders Olav Garlid

RESPONDING PARTY: Defendant, Hamlet Karabekyan

(1)

Plaintiff

Anders Olav Garlid's Motion to Compel Defendant Hamlet Karabekyan to Provide
Further Responses to Special Interrogatories (Set One) is GRANTED pursuant to Code of Civil Procedure section
2030.300, subdivision (a).

(2)

Plaintiff

Anders Olav Garlid's Motion to Compel Defendant Hamlet Karabekyan to Provide
Further Responses to Request for Production (Set One) is DENIED pursuant to

Code of Civil Procedure section 2031.310, subdivision (a).

(3)

Plaintiff

Anders Olav Garlid's Requests for Monetary Sanctions are GRANTED pursuant to Code of Civil Procedure sections 2023.010 and 2023.030.

The Court considers the moving papers filed on April 27, 2026, the opposition briefs filed on July 16, 2026, and the reply briefs filed on July 22, 2026.

BACKGROUND

Factual Background

On September 23, 2024, plaintiff Anders Olav Garlid ("Plaintiff") filed the Complaint against defendants Beverly Hills Transit Cooperative Inc., John Doe, and DOES 1 through 50. The Complaint includes the following causes of action: (1) Negligence and (2) Negligent Entrustment, Hiring, Training, and Retention.

On February 26, 2025, Plaintiff filed an amendment to the Complaint, naming Hamlet Karabekyam as a defendant.

On August 20, 2025, Plaintiff filed another amendment to the Complaint, notifying the Court and other parties that the correct name of Hamlet Karabekyam is, in fact, Hamlet Karabekyan ("Defendant").

On October 22, 2025, Plaintiff served Defendant with Special Interrogatories, Set One. (Declaration of Rosibeth Cuevas ("Cuevas Decl."), ¶ 2, Exh. 1.) Subsequently, on November 24, 2025, Defendant submitted discovery responses accompanied by a privilege log. (Cuevas Decl., ¶ 3, Exh. 2.)

On December 31, 2025, Plaintiff's counsel emailed a meet-and-confer letter to Defendant's counsel regarding Special Interrogatories Nos. 25, 27, 28, and 29. (Cuevas Decl., ¶ 4, Exhs. 3-4.)

In response, on January 8, 2026, Defendant's counsel requested an extension to respond by January 16, 2026. (Cuevas Decl., Exh. 4.) Furthermore, Defendant proposed a mutual extension, permitting Plaintiff to file motions to compel further responses by February 17, 2026, if necessary, and indicated that amended responses would be served by February 4, 2026, if deemed appropriate. (Cuevas Decl., Exh. 4.) Plaintiff's counsel consented to this arrangement, provided that the deadline for filing the motions to compel was not contingent upon whether Defendant provided further responses. (Cuevas Decl., Exh. 4.)

On February 3, 2026, Defendant's counsel requested an additional one-week extension, along with a corresponding extension for the motions to compel, citing illness as the reason for the delay. (Cuevas Decl., Exh. 5.) Plaintiff's counsel granted this request. (Cuevas Decl., Exh. 5.)

On February 19, 2026, Plaintiff's counsel reached out to Defendant's counsel following the lack of response. (Cuevas Decl., Exh. 6.)

On February 24, 2026, the parties' counsel engaged in a telephone conversation and reached an agreement wherein Defendant would provide further responses by March 26, 2026. (Cuevas Decl., Exh. 6.) The parties also agreed that Plaintiff would be allowed until April 27, 2026, to file any motions to compel further. (Cuevas Decl., Exh. 7.) However, Defendant did not provide further responses, leading Plaintiff to file the current motion. (Cuevas Decl., ¶¶ 9-10.)

LEGAL STANDARDS

Code of Civil Procedure

section 2030.300 provides that "[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that" the responses contain: (1) answers that are evasive or incomplete; (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response; or (3) unmerited or overly generalized objections.

(Code Civ. Proc., § 2030.300, subd. (a).) "[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party

waives any right to compel a further response to the interrogatories.” (Code Civ. Proc., §2030.300, subd. (c).) Moreover, “[a] motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §2030.300, subd. (b)(1).)

Additionally, “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code of Civ. Proc., § 2017.010.) For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (City of Los Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 288.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §2030.300, subd. (d).)

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmeritorious or overly generalized objections. (Code Civ. Proc., § 2031.310, subd. (a).) Moreover, “[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §2031.310, subd. (b)(2).)

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) “To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the

fact.” (Digital Music News LLC v

Superior Court (2014) 226 Cal.App.4th 216, 224 (“Digital Music News LLC”).) If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal. App.4th 92, 98.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Under Code of Civil Procedure

section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd.

(a).) “Misuses of the discovery process

include ... (d) Failing to respond to or submit to an authorized method of discovery.” (Code Civ. Proc., §

2023.010, subd. (d).) “The court may

award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

The plaintiff was required to

meet and confer with Defendant before filing these motions. (Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2031.310, subd. (b)(2).) Code of Civil

Procedure section 2016.040 states that a meet and confer declaration “in support of a motion [to compel] shall state facts showing a reasonable and good

faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) “ ‘The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.’ ” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On December 31, 2025, Plaintiff’s counsel emailed a meet-and-confer letter to Defendant’s counsel regarding Special Interrogatories Nos. 25, 27, 28, and 29. (Cuevas Decl., ¶ 4, Exhs. 3-4.)

In response, on January 8, 2026, Defendant’s counsel requested an extension to respond by January 16, 2026. (Cuevas Decl., Exh. 4.) Furthermore, Defendant proposed a mutual extension, permitting Plaintiff to file motions to compel further responses by February 17, 2026, if necessary, and indicated that amended responses would be served by February 4, 2026, if deemed appropriate. (Cuevas Decl., Exh. 4.) Plaintiff’s counsel consented to this arrangement, provided that the deadline for filing the motions to compel was not contingent upon whether Defendant provided further responses. (Cuevas Decl., Exh. 4.)

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On February 19, 2026, Plaintiff’s counsel reached out to Defendant’s counsel following the lack of response. (Cuevas Decl., Exh. 6.)

On February 24, 2026, the parties’ counsel engaged in a telephone conversation and reached an agreement wherein Defendant would provide further responses by March 26, 2026. (Cuevas Decl., Exh. 6.) The parties also agreed that Plaintiff would be allowed until April 27, 2026, to file any motions to compel further. (Cuevas Decl., Exh. 7.) However, Defendant did not provide further responses, leading Plaintiff to file the current motion. (Cuevas Decl., ¶¶ 9-10.)

Accordingly, the Court finds that Defendant sufficiently met and conferred with Plaintiff regarding the motion to compel further responses to Special Interrogatories, Set One. However, Defendant failed to submit a declaration regarding the meet-and-confer process related to the motion to compel further responses to Request for Production, Set One. In fact, Plaintiff did not file the complete motion; instead, Plaintiff provided only two proposed orders and a separate statement pertaining to the motion to compel further responses to Request for Production, Set One.

Consequently, Plaintiff's motion to compel further responses to Request for Production, Set One, and the request for sanctions is DENIED. As such, the Court will address only the merits of the motion to compel further responses to Special Interrogatories, Set One.

DISCUSSION

Plaintiff moves to compel a further response to Special Interrogatory No. 25. (Plaintiff's Separate Statement, pp. 2:5-3:25.) GRANTED.

Special
Interrogatory No. 25

Plaintiff requests: "Please state the telephone number of the cell phone YOU had with YOU at the time of the SUBJECT INCIDENT and the service provider for that cell phone." (Plaintiff's Separate Statement, p. 2:7-8.)

In response, Defendant stated: "Response: Objection: This interrogatory seeks information in violation of Responding Party's state and federal constitutional right to privacy.

This interrogatory seeks information not relevant to the subject matter of this lawsuit nor reasonably calculated to lead to the discovery of admissible evidence." (Plaintiff's Separate Statement, p. 2:10-13.)

Plaintiff maintains that this information is relevant, referencing California Vehicle Code sections 23123 and 23123.5, which indicate that "cell phone use while driving creates such a distraction that it must be prohibited

in certain circumstances.” (Plaintiff’s Separate Statement, p. 3:11-15.) Consequently, Plaintiff argues that “if the Defendant was on a cell phone at the time of the subject collision, such conduct would be relevant as it demonstrates a potential distraction and constitutes negligence per se depending on what was occurring.” (Plaintiff’s Separate Statement, p. 3:15-17.) Furthermore, Plaintiff claims, “Defendant claims he never saw the collision between his vehicle and Plaintiff’s body[.]” (Reply, p. 2:14-15.) Therefore, “whether he was using his cell phone at the time of the impact is relevant to determine why Defendant did not observe the collision.” (Reply, p. 2:15-16.)

Here, although Defendant denied using his cell phone at the time of the incident, the cellphone records may indicate otherwise. (Opp., p. 2:16-19; Cuevas Decl., Exh. 2, p. 8:24-27.) The Defendant’s cell phone number and service provider are relevant and may likely facilitate the discovery of admissible evidence.

Accordingly, Plaintiff’s Motion and the accompanying request for sanctions in the amount of \$1,460 [4hrs of work x \$350/hr + \$60 for filing fees] is GRANTED.

ORDERS

1)

Plaintiff

Anders Olav Garlid’s Motion to Compel Defendant Hamlet Karabekyan to Provide Further Responses to Special Interrogatories (Set One) is GRANTED.

2)

Defendant

shall provide code complaint without objections, responses on or before August 29, 2026.

3)

Plaintiff

Anders Olav Garlid’s Motion to Compel Defendant Hamlet Karabekyan to Provide Further Responses to Request for Production (Set One) is DENIED.

4)

Plaintiff

Anders Olav Garlid's Request for Monetary Sanctions in the amount of \$1,460 is
GRANTED.

5)

Defendant

and Defense Counsel, Veatch Carlson, LLP, shall pay said amount to Plaintiff's
counsel on or before August 29, 2026.

6)

Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 29, 2026

Tamara

Hall

Judge

of the Superior Court